

Case :- WRIT - C No. - 43858 of 2017

Petitioner :- Jainullah

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Jai Prakash Mishra

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Rajiv Lochan Mehrotra,J.

Heard learned counsel for the petitioner and Sri R.S.Umrao, learned counsel for the respondent/Electricity Department.

This writ petition has been filed praying for a mandamus for correction of the amount, which is sought to be realized either by way of assessment after an allegation of theft or, by way of a billing dispute. It is however to be noted that a recovery citation has already been issued against the petitioner on 03.01.2014 copy whereof has been filed as Annexure-5 to the writ petition. There is however, no challenge raised to the recovery certificate which is for a sum of Rs.4,02,459/- but at the same time it is alleged in the writ petition that after lodging of the first information report against the petitioner under Section 138 (b) of the U.P.Electricity Act, 2003 the petitioner was bailed out by the High Court whereafter the Executive Engineer himself, after reducing the compounding amount of Rs.2 lakhs, has called upon the petitioner to deposit the balance of the amount mentioned in the recovery citation as is evident from a perusal of the document filed as Annexure-4 to the writ petition.

Learned counsel submits that the said revised demand raised is also erroneous inasmuch as the demand treats the consumption of electricity of utilization through a 10HP motor, whereas the petitioner had installed a 7.5 HP motor and the consumption of electricity even for the period of disconnection can not be realized from the petitioner.

A gamut of the aforesaid facts therefore leads to the conclusion that the petitioner has to approach the Executive Engineer concerned in the event he is raising essentially a billing dispute, but if the petitioner is questioning the assessment already made then the petitioner has to file an appeal in terms of Section 127 of the U.P.Electricity Act, 2003. Consequently for either of these purposes the petitioner will have to approach the appropriate Forum namely, the Executive Engineer under Clause 6.5 of U.P. Electricity Supply Code, 2005 or filing an appeal before the Appellate Authority in terms of Section 127 of the said Act as the case may be.

We are therefore not inclined to entertain this petition without prejudice to the rights of the petitioner to avail of either of these remedies and in the event the petitioner avails of the said remedy the Competent Authority shall deal with it in accordance with law.

Writ petition is consigned to records with the said observations.

Order Date :- 19.9.2017

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